

Alcala Theses 1601

Theses Complutenses (1601) et acta Romana (1602) (*The Alcalá Theses of 1601 and the Roman Acts of 1602*)

Documents of the “Alcalá theses” affair: Gaspar Hurtado’s printed conclusions; Francisco Peña’s case-notes, censura, and correspondence; and the censure of the papal commission of theologians (Rome, 19–20 July 1602)

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- *All texts translated from the edition of David Torrijos-Castrillejo, “El Papa cuestionado. Manuscritos inéditos de F. Peña sobre las tesis de Alcalá (1601–1602),” Cauriensia 17 (2022) 609–635, published under a Creative Commons BY licence.*
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- *Selection: the propositions as denounced; the full fourth conclusion (D5); Peña’s case-note; Peña’s Latin censura; Peña to the royal confessor (D3); the Roman commission’s censure (D7)*

Note on this selection. These are the founding documents of the dispute that runs through this whole repository. Chronology: in July 1601 Gaspar Hurtado, then regent of Arts at Alcalá (later a Jesuit, and successor of Gabriel Vázquez in the chair of Prima), defended in one of his nine doctoral acts, under Álvaro de Villegas, printed conclusions whose fourth conclusion — the act’s official question was on the Mosaic bill of divorce — contained the two propositions here documented (the printed sheet is from October/November 1601). The sheet reached Clement VIII on 2 March 1602; on 7 March 1602 Jesuits defended the thesis again at Alcalá; the Spanish Inquisition intervened (whether anyone was actually imprisoned was later denied by Hurtado himself); Báñez held his clarifying act at Valladolid on 2 July 1602 (see the 1602 Báñez entry), the Jesuits their counter-act on 10 July; and on 19–20 July 1602 a commission of theologians convened by special commission of Clement VIII at the palace of the Roman Inquisition unanimously censured four propositions excerpted from printed Alcalá conclusions (the note signed, per Peña, on 23 July).

On the commission's authority: it was a formally constituted qualification panel — papal commission, Holy Office venue, propositions consigned to the Commissary General by papal mandate, unanimous vote, and signatories including the Dominican Master General (Xavierre), the Master of the Sacred Palace, the Commissary General of the Inquisition, the Franciscan general Juan de Rada, Diego Álvarez, and Michelangelo Seghizzi (the later Commissary of the Galileo injunction of 1616). But it is a consultants' censura feeding a process, not a promulgated condemnation: it survives only in manuscript, no public decree followed, and the accused went free.

On its bearing on the question of this repository: the four censured propositions form a system beneath the famous thesis. P1 (divine faith conditioned on a necessary human assent) makes every concrete application of faith inherit fallibility at the human joint — censured as an error in faith savoring of (Semi-)Pelagianism. P2 (prudential knowledge suffices for the Church's grasp of the revelation entrusted to her) is the Alcalá epistemology generalized to the whole Church, rendering her recognition of canon, councils, and her living rule of faith fallible in principle — censured flatly as scandalous, pernicious, and heretical, with Rada adding that in its exclusive sense it is “subversive of the whole faith.” P3 (Roman succession not established de iure divino, though most probable) degrades the universal premise of the whole syllogism, so that no acceptance however peaceful could yield more than probability — censured as scandalous, paving the way to schism, heretical or at minimum proximate to heresy. P4 (heresy = contradiction of “commonly known” doctrine) is a safe-harbor definition immunizing deniers of non-notorious connected truths — censured as temerarious, scandalous, strewn the way to the defense of errors. What the commission never censured is the headline thesis itself — “non est de fide hunc numero Papam esse verum Papam” is absent from the four propositions. Rome condemned every route by which the Church's acceptance-judgment could be rendered fallible, while leaving the note-question (per se primo vs. per se secundo) untouched as a school dispute — which explains how Hurtado could later write (1632; see that entry) that his doctrine had been “judged completely sound,” and why the Salmanticenses and Palanco could truthfully say the negative opinion as such was never condemned. Note also Peña's own position: his censura grounds itself on Báñez's resolution (denial of the accepted pope's legitimacy punishable as heresy) and adds the providence argument — that it belongs supremely to divine providence not to permit an unbaptized man or a woman to ascend to the pontificate — making Peña a substantive witness to the infallibility of the Church's acceptance, and, as Torrijos observes, the first to read Báñez correctly, months before the Jesuits conscripted him for the opposite side.

1. The propositions as denounced to Rome (enclosure sent with Peña's letter of 26 April 1602)

[Left margin: These conclusions were defended at Alcalá de Henares in the month of October or November of the year 1601.]

Theological Question.

Whether by the bill of divorce, under the Law of Moses, the bond of marriage was dissolved.

In the fourth Conclusion, which is on the Church, the two following propositions are set down in these formal words:

1. It is not of faith that this numerically singular Pope, for example Clement VIII, is the true Pope.
2. The greater part of the Fathers in a Council, even before the confirmation of the supreme pontiff, is of infallible truth.

Dr. De la Cámara, Dean.

Dr. Álvaro de Villegas.

2. The fourth conclusion in full (conclusions defended by Gaspar Hurtado in one of his doctoral acts)

From the conclusions of the University of Alcalá.

Fourth Conclusion.

The Christian Church, which is visible, is a congregation of the baptized faithful, whose members catechumens are not, nor heretics, nor apostates — though schismatics and the excommunicated are; and she began from Christ and shall endure to the end of the world; she is truly named one, holy, catholic, and apostolic, and in matters of faith and those pertaining to morals she cannot err; whose supreme head is the Roman Bishop, successor of Peter in the episcopate and in the supreme dignity of the Church; *it is not of faith that this numerically singular Pope, for example Clement VIII, is the true Pope* — who, on account of a sin of manifest heresy, seems able to be deposed by the Church. And [he it is] who, as Pope, cannot err in matters of faith or pertaining to morals [text garbled in the manuscript copy], nor in the approbation of a religious order, nor in the canonization of saints; and to him, since he is head of the whole Church, it pertains to convoke general Councils and to preside in them, whether in person or through legates; in which only the bishops possessing ordinary jurisdiction [have the office] of defining matters of faith, and the rest — the cardinals, and the generals of orders — by privilege; *of all of whom the greater part, even before the confirmation of the supreme Pontiff, is of infallible truth.* Tradition is either ecclesiastical, or apostolic, or divine. The edition of our Vulgate is of infallible authority; between sacred scripture, divine tradition, and the Church there is no excess of infallibility.

3. Peña's autograph case-note

- 1602. Concerning the propositions of Alcalá.

[*Left column:*] On this case the Duke of Sessa, the ambassador, had long discourse with His Holiness Clement VIII on Saturday, in the audience of 16 March 1602.

The Duke wrote to the King about the same case by extraordinary courier, which left Rome on 18 March 1602, pressing the case strongly, so that he might order his Council of the Inquisition to punish it; he also wrote to the father confessor, and I in conformity wrote him the letter which is in this quire.

[*Centre column:*] In the year 1601, in the month of October or November, a certain man publicly defended certain printed conclusions, and in the fourth conclusion placed the two following propositions. The first: that it is not of faith that this pope, namely Clement

VIII, is the true pope of Christ. The other: that the greater part of a council, without the pope's confirmation, produces infallible truth.

These conclusions Our Most Holy Lord Pope Clement VIII saw in the year 1602, on Saturday, the 2nd of the month of March.

4. Peña's Latin censura, excerpts

[f. 460r] Finally, it is pleasing [to note] what, to this purpose, Domingo Báñez judged on St. Thomas, II-II, q. 1, a. 10, dub. 2, [f. 460v] in the response to the second argument — where, after he had set out many things from the opinion of many, at last, resolving the article, he said that he who would deny that the one elected by the Church and accepted by her is true Pope — unless he showed that he had not been baptized or was not a man — could deservedly be punished, not merely as vehemently suspect of heresy, but even as a heretic. **Since it belongs supremely to divine providence not to permit an unbaptized man, or a woman, to ascend to the Supreme Pontificate.**

[...]

[f. 462r] Wherefore, since the propositions are worthy of a sharp Censure, those appear deserving of a grave and severe judgment who defended, taught, and signed the conclusion, and by their authority permitted it to be defended — above all at this time, in which all the efforts of certain men are directed chiefly to this: that the judgment of the Roman Pontiff be either evaded, or eluded, or rendered uncertain and by no means infallible.

5. Peña to the King's confessor [Fray Gaspar de Córdoba, O.P.], 18 March 1602

[465r] The case of the conclusions which in the month of October or November were defended at Alcalá, with the two propositions *quod non est de fide, verbi gratia, hunc Papam Clementem Octavum esse verum Papam* and *quod maior pars Concilii habet infallibilem veritatis auctoritatem*, is of the quality Your Most Reverend Paternity knows; and these propositions, uttered at this time when the partisans of Molina are striving by every possible means to defend him, carry great suspicions and portend the gravest harms — which I have foretold for many days to Our Most Reverend Father, and given notice of them to the Council of the Holy General Inquisition. The first, the Preachers qualify with a grave censure, at least as *vehemently suspect of heresy* — Torquemada, *De ecclesia*, book 4, part 2, chapter nine or ten if I remember rightly, and Master Báñez, 2.2, quest. 1, art. 1 [recte 10], dub. 2 — and here they give it a graver qualification. The second [465v] is heretical, since it gives infallibility in declaring matters of faith to one who does not have it; for that privilege belongs to the Roman Pontiff, Vicar of Christ. It has seemed necessary to the Duke to recall this to Your Most Reverend Paternity, so that everything may be penetrated and weighed as is right, and the complaint not be passed over lightly, nor treated as a matter of scholastic disputes, nor given for qualification to persons who, through ignorance, or small attention, or other regards, would so attenuate them as to give His Holiness new occasion for greater displeasure. There the things of religion are being placed in great dangers: Pelagius has gathered much strength; the negligence of the bishops of Spain is, and has been, very great in failing to raise their voices against so many novelties of bad doctrines. If His Majesty does not command a swift remedy provided, and does not procure, through his Council of the Holy Inquisition, to put bridle

and fear upon the audacious with penalties and rigour, [466r] I know not what good we can promise ourselves, nor what harms we can cease to fear. To represent this in particular belongs to Our Most Reverend Father, who governs the conscience of the King. God keep Our Most Reverend Father.

6. Censure of the papal commission of theologians, Rome, 19–20 July 1602

[46r] Censure upon the Conclusions defended in Spain.

In the Congregation of Theologians held by special commission of Our Most Holy Lord Clement, by divine providence Pope VIII, in the Palace of the Holy and Universal Inquisition of Rome, on the 19th and 20th days of July 1602 — in which the undersigned Father Theologians convened, the four following propositions having been set before them, excerpted from the printed sheets of certain Conclusions consigned to the Father Commissary General of the Holy Office by mandate of the same His Holiness — all the aforesaid Fathers, with unanimous consent, agreed in the censure of the same propositions as below.

First Proposition.

Divine faith necessarily presupposes in us, as a condition, a human assent concerning the truth of divine revelation.

Censure.

If the proposition is understood of the truth of divine revelation absolutely — namely, that whatever God reveals is true — the proposition receives no censure; but if of the truth of divine revelation as proposed to us by the Church, then it is an error in faith, and savours of the heresy of the Pelagians and Semi-Pelagians; and in this second sense the proposition seems to be drawn from the context.

Second Proposition.

It is not necessary that the revelation made to the Church concerning the divine Mysteries be known certainly and infallibly; prudential knowledge suffices.

Censure.

Scandalous, pernicious, and heretical.

Third Proposition.

The succession of the Apostle Peter in the Roman Bishop is not established as of divine right, although it is most probable that Christ commanded St. Peter that it be done.

[46v] Censure.

Scandalous, preparing the way to schism, and heretical — or at the least proximate to heresy.

Fourth Proposition.

A heretical proposition is one which has contrariety against doctrine of the faith commonly known.

Censure.

Temerarious, scandalous, strewing the way to the defending of errors, and savouring of heresy.

Fr. Jerónimo Xavierre [Master General], Order of Preachers.

Fr. Giovanni Maria of Brisighella, Master of the Sacred Apostolic Palace.

Fr. Deodato Gentile of Genoa, Commissary General of the Holy and Universal Inquisition.

Anastasius of Brescia, Abbot of St. Benedict, of the Cassinese Congregation.

I acquiesce in the censure of the third Proposition, and of the fourth, absolutely as it stands. But concerning the first proposition I say that, by reason of that word “necessarily,” it is false and temerarious, if that condition of assent be taken purely negatively; for if it be taken affirmatively — so that that assent is a cause, or condition, of the positing of the divine and supernatural assent, or of the divine aid to believe — it will without doubt be at least a Semi-Pelagian proposition, placing the beginning of justification from ourselves; but whether its assertor should be interrogated as to the sense in which he received it, let His Holiness judge.

Concerning the second proposition I say that, if it excludes from the Church the certain and infallible cognition of faith concerning the revelation made to her of the articles of faith — which at first sight the proposition seems to mean — it is without doubt heretical, and subversive of the whole faith. But if it does not exclude that, but presupposes it, and — that being presupposed — [asserts] that the Church, as distinguished from the fathers to whom the revelation was first made, did not necessarily need, for having this cognition of faith, [47r] another, infallible cognition, but a prudential one, by which she would first be moved to believe — it seems that in this sense the proposition is not heretical. This I hold, subject to the censure of Our Most Holy Lord.

Fr. Juan de Rada, Prior General of the Order of St. Francis.

Fr. Girolamo Pallanterio, Conventual Franciscan.

Fr. Gregorio Núñez Coronel, Order of St. Augustine: I subscribe to the censure of all four propositions simply.

Fr. Diego Álvarez, Regent of the Minerva.

Fr. Michelangelo Seghizzi of Lodi, Lector of Sacred Theology and Socius of the Father Commissary General of the Holy Office.